BANGLADESH

ERA OF SHEIKH MUJIBUR RAHMAN

Moudud Ahmed

Scanned with CamScanner

Contents

Chapter One

Beginning of a New State 1
Return of Sheikh Mujibur Rahman 4
The Proclamation of Independence 5
The Laws Continuance Enforcement Order 7
The Provisional Constitution of Bangladesh Order, 1972 8

Chapter Two

Awami League Government: Economic and Social Measures 14
Taking over of Abandoned Properties: Laws and Decisions 15
Nationalisation of Banks, Insurance Companies and Major Industries 22
Banks and Insurance Companies 31
Relief and Rehabilitation Programme 32
Relief Committees 32

Chapter Three

Law and Order Situation 46
Politics of Arms: National Militia and the Freedom Fighters 46
The Collaborators 51
The Rakhi Bahini and the Law Enforcing Agencies 62
Court's Decisions 66
Smuggling and other Economic Offences 75
Court's Decisions 79
The Civil Administration 82
The Bangladesh Public Servant's (Retirement) Order, 1972 89
Exemption of Taxes and Land Ceiling 93
Industrial Workers 95

Scanned with CamScanner

Chapter Four

The Constitution-Making Process 108
Demand for a New Constituent Assembly 108
The 1972 Constitution: Basic Principles 111
The Fundamental Rights 117
Provision relating to Preventive Detention and Emergency 119
Westminister-type Parliamentary System 124
The Defence Services 127
Local Government 128
Legislature 128
Ombudsman 131
Law-Making Procedure: Supremacy of Parliament 132
Judiciary 134
The Writ Jurisdiction 137
Administrative Tribunals 137
Election 140
The Services 142
The Amendment of the Constitution 144
Bengali Text of the Constitution 148
Summary and Conclusion 150

Chapter Five

Move for Political Consolidation: The General Elections, 1973 162
Manifestos 165
The Elections 168
The Lal Bahini 174
Amendment of the Constitution and Enactment of Certain Laws 176
Press and Publication Ordinance 179
The Special Powers Act, 1974 180
Court Decisions 183

Chapter Six

Economic Planning and Reorganisation 189
The First Five Year Plan: A Move for a Socialist Transformation 189
Philosophical Base of the Plan 191
Preconditions for a Socialist Development 191
The Objective Conditions Prevailing in Bangladesh 193

Scanned with CamScanner

Socio-political Assumptions of the Plan 195
External and Domestic Resource Target 197
GDP and Per Capita Income 198
The Plan 198
Performance of the Plan 203
Dependence on Foreign Aid 207
Private Sector 208
Reorganisation of Salary Structure 209

Chapter Seven
The Bangladesh-India Relationship 214
The Friendship Treaty 219
The Indo-Soviet and Afghan-Soviet Treaty 222
The Conflicting Interests between Bangladesh and India 225

Chapter Eight
The Prisoners of War 231
A Central Issue in Foreign Relations 231
Simla Agreement 233
Joint Settlement offer by Bangladesh and India 236
Reply of Pakistan 237
Delhi Agreement between India and Pakistan 239

Chapter Nine
Food, Flood and Famine 245

Chapter Ten
Role of the Political Parties and Three-Party Alliance 255
Role of JSD: The Gherao Movement 259
Role of the NAP(B) and Opposition Unity 261
The Committee for Civil Liberties and Legal Aid 263
Three-Party Alliance 265

Chapter Eleven
The Proclamation of Emergency and Switching to One-party System 274
The Fourth Amendment of the Constitution 278
The President becomes the Chief Executive 279
The Vice President 280
The Council of Ministers 280
Local Administration 281
Parliament and Legislation 281
Judiciary 282
One National Party 284

Scanned with CamScanner

Other Features 285
Justifications for the Change in the System 287
Formation of the Bangladesh Krishak Sramik Awami League (BAKSAL): Its Philosophy and Programme 290
Annulment and Taking over of News Papers 293
National Unity 294
Summary and Evaluation 297
Domestic Situation 301
Perpetuation of Power 302
Socialist Economic Order 302
Towards Some Improvement: Mujib Seeks Moulana's Support 304
Law and Order 304
Economic Recovery 305
End of the BAKSAL Regime: Brutal Killing of Sheikh Mujib 306

Chapter Twelve — Sheikh Mujibur Rahman 313
Appendix A — The Proclamation of Independence 321
Appendix B — Laws Continuance Enforcement Order 324
Appendix C — Provisional Constitution of Bangladesh Order, 1972 325
Appendix D — Position Paper Prepared by the Research Cell External Publicity Division of the Bangladesh Government in Exile, June 1971 327
Appendix E — Treaty of Friendship, Co-operation and Peace between the People's Republic of Bangladesh and the Republic of India 331
Index — 335

Scanned with CamScanner

Chapter One

Beginning of a New State

On the 16th day of December, 1971 Lt. General Amir Abdullah Khan Niazi, the Commander of the Eastern Command of Pakistan received Lt. Gen. Jagjit Singh Aurora, the commander of the Eastern Command of India and the GOC-in-Chief of the Indian and Bangladesh Forces at the Dhaka Airport with a smart military salute[1]. They then drove together to the Ramna Race Course where a small contingent of the Pakistan Army presented a guard of honour to the Indian Commander and at 4.00 in the afternoon both the Generals signed the instrument of Surrender. With this ended the war in 1971 and came the formal birth of Bangladesh.

Once the Pakistan Army surrendered, the victors took the charge of the vanquished but Bangladesh continued to exist without any government within its own territory. Although Aurora was commanding the allied forces, Bangladesh remained unrepresented in the surrendering ceremony except the last minute inclusion of Group Captain Khondker who was despatched from Calcutta to accompany by the Indian Commander. The Acting President, the Prime Minister[2] the Commander-in-Chief[3] and the Defence Secretary of the Mukti Bahini were all sitting at Calcutta on that day. Once the Instrument of Surrender was signed, Aurora left, so did Khondker and Bangladesh was left in the hands of the Indian Army officers.

It was a delicate situation. The men who were the formal leaders in the struggle from Bangladesh side did not take part in the actual war nor had they any clear idea about the situation inside the country. The hundreds and thousands of young men who took active part in the war both from within

Scanned with CamScanner

and outside the country had already established their political influence in their respective areas in the absence of any Government. Kader Siddiqui, one of the valiant freedom fighters had already reached Dhaka and started the process of reprisals by slaying a few 'Beharis' ceremoniously at the Outer Stadium field[4]. Soon after the surrender of the Pakistan army a new band of fake freedom fighter appeared on the streets who just switched their labels in order to keep themselves on the winning side[5]. No one actually knew what was happening including the Cabinet Ministers at Calcutta.

But nevertheless the entire country, particularly Dhaka wore an extremely festive look. At least a million people, men, women and children were on the streets to greet the Indian Army and the members of the Mukti Bahini. The people were relieved of the agony and torture inflicted on them by the Pakistan Army for 9 long months. Therefore the reception accorded to a spontaneous one.

With a contingent of Indian "advisers" comprising civil servants and technical experts, a handful of Bengali civil servants arrived in Dhaka the same week and under the guidance of the Indian bureaucracy the civil administration was gradually set in motion[6]. At Calcutta from the Bangladesh side a continued pressure was put on the leaders and Cabinet Ministers even prior to the surrender to immediately go to Dhaka to take over the charge of the new Government. But due to their timid character and non-involvement in the actual war, the leaders were scared and reluctant to face the situation[7]. None took the initiative to take the responsibility of the new government[8]. At last, after about seven days of the surrender some of the leaders left Calcutta to proceed in their homeway journey to Dhaka to manage an independent country.

In this confusing state, although the Indian Army and the civil personnel were received well but the men who actually fought for the country did not like their dominating role. They did not like the installation of men in the government, who were sitting in Calcutta and did not take any part in actual war. This difference between the freedom fighters and the political leaders was already evident during the 9 month struggle. Although the Independence war of Bangladesh was not an armed struggle in the classical sense and had no strong ideological or philosophical foundation yet it is only natural that war of that nature generate new thoughts and ideals amongst the millions who took part in it with or without the gun[9]. They had dreams and hopes about their new country; they knew what they wanted but did not known how to get it. Within the

Scanned with CamScanner

Awami League itself, the separately created and specially trained Mujib Bahini[10] hoped to take control of the government. Leaders like Sheikh Moni and other were openly opposed to Tajuddin's leadership. In a way Bangladesh was plunged into a counter-revolution the day is was born in the sense that power went into the hands of those who did not fight. This had a far-reaching consequence in the Bangladesh body politic.

In the absence of an effective political government and without Sheikh Mujibur Rahman, the freedom fighters, the 16th Division notwithstanding, took position in their respective areas and started running the administration. Except in the city of Dhaka there was practically no government in the country for several weeks. During those days the Tajuddin Government could have been easily overthrown had there been no Indian Army to protect it. However, after their arrival in the capital, the Dhaka-based government started issuing directives primarily in an attempt to bring the monetary and fiscal institutions under control.

But once in Dhaka, Tajuddin quickly tried to consolidate his own position and one of the first steps he took was to remove Khondker Moshtaque Ahmed from the important post of the Ministry of Foreign Affairs and put Abdus Samad Azad there. Moshtaque was asked to retain his other portfolio of Law and Parliamentary Affairs. Tajuddin also tried to come to an understanding with the freedom fighters and drew up an elaborate plan to rehabilitate and utilise them in the national reconstruction programmes. He was also successful in restraining a sizeable section of Mukti Bahini from resorting to reprisals against the collaborators, particularly the Beharis. But being the Prime Minister of a divided government and in the absence of Sheikh Mujibur Rahman the new government continued to be weak and run under the influence of the Indian authorities.[11]

In the meantime, Bhutto on his assumption of office as the President of Pakistan and having fulfilled the ambition of his life, with the intention of releasing Mujib, his arch political rival from jail kept him in a house in Rawalpindi in an attempt to negotiate a compromise[12]. Whatever might have been the consideration or pressures national or international, Bhutto at last had obtained a political mandate at a public meeting at Karachi and announced on January 3, 1972 that Mujib would be freed. The news of the possible release of Mujib brought a deep sense of relief to all the people in Bangladesh who were living in the midst of most dangerous uncertainties.

Scanned with CamScanner

Return of Sheikh Mujibur Rahman

On January 8, 1972 Mujib was put on a P.I.A. jet aircraft to leave Pakistan for a destination of his own choice. Mujib arrived in London as the President of Bangladesh, not yet recognised by the British Government but he addressed a large press conference and the British leaders including the Prime Minister met him and extended to him all courtesies. It is not yet known why Mujib chose not to use the Red Cross plane hired by the Indian Government or why he decided to go to London first[13]. Nevertheless, on his way back Mujib stopped at Delhi where he was given a grand reception. Mujib paid his personal tributes to the people of India and met Mrs. Indira Gandhi and other Indian leaders.

Then the triumphant moment came and with that Mujib brought with him the heaviest responsibility to straighter a country ravaged by war and to meet the hopes, dreams, expectation of seventy-five million people built up through a struggle of long 24 years. It was a mammoth reception, warm and spontaneous for an undisputed leader. Known to be a moderate politician and a liberal democrat, Mujib struggled and suffered for many years for the restoration of human rights and a democratic system. He was in prison again and again on countless occasions, and passed most of his creative age in prison cells. As a genuine leader of the people, he travelled from village to village. He never forgot a face he one saw and having a sharp memory, Mujib could remember names of hundreds and thousand of his workers. So long an agitator, a demagogue, a spitfire orator belonging to the opposition for almost his entire life, he now arrived in the midst of his own people as the President and father of the nation.[14]

The same day, to keep in line with his earlier commitment, Mujib ordered to change the law. He did not want to act as the president but chose to be the Prime Minister of the country in line with a Westminister-type Parliamentary system. So long the country was being run under a Proclamation of Independence which named Sheikh Mujib as the President. Following the Pakistan Army crackdown on March 25, 1971 the Awami League leaders who could escape and assemble in India had to adopt a legal instrument in order to enable them to form a government-in-exile and receive assistance from India. Accordingly, the proclamation was drafted and adopted on the 10th April, 1971[15] with retrospective effect from March 26, 1971 in order to legalise the government and the Independence war[16].

Scanned with CamScanner

The Proclamation of Independence

The Proclamation of Independence laid down the fundamental law for the country in war. So it continued to provide the legal cover for all the acts done by the government not only during the war period but also thereafter. The Proclamation became the fountain of law and the source of authority ; it was the constitution of the country till the new constitution was made effective on and from December 16, 1972. The proclamation was made to handle a special situation. The main feature of the proclamation was that the governmental system was made Presidential and for strategic and popular reasons Sheikh Mujib was named as the President in the instrument itself[17] and he was to continue as a President till such time a constitution was framed. War is always met by special laws to enable a government to handle the affairs of the state effectively. So it was nothing unusual that in the special circumstances power was concentrated in one hand, giving the president both the executive and the legislative powers. Besides this, the president was made the Supreme Commander of the armed forces with power to grant pardon, appoint a Prime Minister and other Ministers, levy taxes and expend monies, summon and adjourn the Constituent Assembly and do all things necessary to give to the people of Bangladesh "an orderly and just" government.

Since everyone knew that Mujib was not present to function as the President, the Proclamation provided that in the event of there being no President or where the President was unable to enter upon his office or was unable to exercise his powers and duties for any reason, the Vice-President would have all the powers, duties and responsibilities of the President[18]. The Proclamation further declared that Bangladesh would observe and give effect to all the duties and obligations developed upon it as a member of the family of nations under the charter of the United Nations.

According to the Proclamation the elected representatives (MNAs and MPAs) constituted themselves into a Constituent Assembly and having held mutual consultations declared and constituted Bangladesh as a sovereign people's republic. They thereby confirmed the declaration of independence already made by Sheikh Mujibur Rahman on March 26, 1971[19]. The reasons for justifying the proclamation were stated to be that after the free election held in the country for the purpose of framing a constitution Yahya Khan summoned the elected representatives of the people to meet on march 3, 1971 for the said purpose but the Assembly so summoned was arbitrarily and illegally postponed for an indefinite period and instead of fulfilling their

Scanned with CamScanner

promise, the Pakistan authorities declared an unjust and treacherous war. So the representatives from Bangladesh met and constituted themselves into a Constituent Assembly and declared independence.

In other words, the Awami League having won the majority both in the National and Provincial Assemblies and having been deprived by the Pakistan authorities from fulfilling their commitment acquired a legal right to assemble and exercise the right of self-determination for and on behalf of their people. Having won 167 seats out of 169 the Awami League could claim to represent the entire people of East Pakistan and also the majority population of the entire Pakistan.

The Proclamation stated that as the elected representatives were honour bound by the "mandate" given to them by the people of Bangladesh, they constituted themselves into a Constituent Assembly and declared independence, though the "mandate" was implicitly given for achieving an autonomous status within the framework of Pakistan and not for independence[20]. The authenticity of Sheikh Mujib's declaration of independence at Dhaka on March 26, 1971 has also not been established the way it is claimed[21]. Nevertheless in the context of the overall politics the Proclamation as a whole served the purpose extremely well.

The question of legality of such a Proclamation drawn by a group of people belonging to one single political party attempting to divide the country of a sovereign state has also to be judged from the actual circumstances. It is true that no national election of any sovereign state can give instant right to such elected representatives of a particular area to declare independence of that part of its territory but each of such cases of right of self-determination has to be examined on its own merit in the light of the charter of the United Nations.

One can also look at the struggle of the American people to achieve their independence in the eighteenth century from the British colonial rule. Throughout the entire movement for independence, suppression and exploitation of the Americans by the British Empire was the underlying factor. Jesus Otiss' great argument in opposing the use of the odious "units of assistance" as a means of repressing struggle in Massachusetts and "an act of Parliament contrary to natural right" was one of the first issues which aroused public opinion against England and ultimately led the American people to adopt the Declaration of Independence. Thomas Jefferson, John Adams, Benjamin Franklin, Roger Thomson and Robert R. Livingston were the heroes of the independence war. At every stage of the oppression, peaceful and constitutional means were first adopted by making petitions to

Scanned with CamScanner

the rulers for redress in the most humble terms but all were in vain. The British despatched new troops to suppress their agitations and the Americans were determined to meet them with resistance and reprisal. So finally the representatives of the United States of America assembled in a general convention on July 4, 1776 and by the authority of the good people of the "colonies (America)" they absolved themselves from all the allegiance to the British government and established free and independent states[22]. In support of this declaration the representatives pledged to each other, "their lives, fortunes and the sacred honour".

It was basically the same story—a struggle to achieve equality, honour and human dignity. Independence has been achieved in many countries since the American Declaration in the same manner to free themselves from oppression, economic exploitation and political suppression. This is an universally accepted right of every such area where people struggle to acquire their self-determination. The United Nations charter guarantees this right.

However, once the Pakistan Army surrendered, the Proclamation gained significant importance both from a historical and constitutional point of view. After December 16, 1971 the Proclamation continued to remain fully effective as the fundamental instrument of law for the country and the laws made thereunder were obeyed by the entire population. The Proclamation became a reality—it created a new nation on the map of the world.

The Laws Continuance Enforcement Order

In the exercise of powers conferred by the Proclamation another important law was made by the Acting President in order to ensure continuity in all spheres. This was the Laws Continuance Enforcement Order dated April 10, 1971 which was made effective from March 26, 1971. For legal, constitutional and international reasons both the Proclamation of Independence and the Laws Continuance Enforcement Order were made effective from March 26, 1971[23]. The Continuance Order legalised and made effective all the existing laws inherited from Pakistan subject to the proclamation. The existing laws would also not be effective if they were inconsistent with the consequential changes as would be necessary on account of the creation of Bangladesh as a sovereign state. It provided that all the government officials civil, military, judicial and diplomatic, who would take an oath of allegiance to Bangladesh would continue in their office on terms and conditions of service so long enjoyed by them. The administration of such oath of allegiance was to be arranged by all District

Scanned with CamScanner

Judges, Magistrates and the Diplomatic representatives within their respective jurisdiction.

The Continuance order was issued to maintain process of continuity in the given circumstances. Although it had put the government at great disadvantages in many respects, it had to be made primarily to gain support of the government officials who had served the Pakistan government. The Government of Bangladesh, although in exile built up a huge bureaucratic machine at Calcutta. The Continuance order was passed not so much for the continuity of laws but more to satisfy the government officials who had joined the government and to encourage those who yet did not. In other words, it meant that all the government officials were guaranteed that despite all dislocations due to war, their service conditions would not be changed and they would continue to enjoy the same rights and privileges as those under the Pakistan authority[24].

The Provisional Constitution of Bangladesh Order, 1972

However, Mujib wanted to change the system by exercising the legislative power he had as the President under the Proclamation of Independence. Accordingly, on January 11, 1972 by a Presidential Order the entire character of the government was changed. The Presidential form was substituted by a form aiming at a Westminster type Parliamentary system through a decree called the Provisional Constitution of Bangladesh Order, 1972[25]. The reason stated for changing the system was that it was the "manifest aspiration of the people of Bangladesh to establish a parliamentary democracy" and so in order to achieve this objective the new order was proclaimed.

By this order under section 5, a Cabinet of Minister was created with the Prime Minister at its head and the all powerful position of the President under the Proclamation was reduced to a mere titular head as section 6 laid down that the President "shall in exercise of all his functions act in accordance with the advice of the Prime Minister". To keep in line with the system section 7 provided that the President would commission as Prime Minister a member of the Constituent Assembly who commanded the confidence of the majority of members of the Constituent Assembly. All other Ministers would be appointed by the President on the advice of the Prime Minister.

The Order also provided a device to enable Sheikh Mujib to become the Prime Minister and justice Abu Sayeed Chowdhury to become the President of Bangladesh. Section 8 provided that in the event of a vacancy occurring in

Scanned with CamScanner

the office of the President the Cabinet would appoint a citizen as President of Bangladesh who would hold the office of President until another President enters the office in accordance with the Constitution to be framed by the Constituent Assembly. The interesting point of this provision was that the office of the President was left open for anyone and was not limited to a member of Parliament or the Constituent Assembly[26] facilitating the appointment of Justice Abu Sayeed Chowdhury as the president of the country. The Provisional Order, by section 9, created a high Court for Bangladesh and provided by section 10 that the Chief Justice of the High Court would administer an oath of office to the Prime Minister and other Ministers and the form of oath would be prescribed by the Cabinet.

Besides the introduction of a sort of Parliamentary system the Provisional Constitution Order dealt with some other areas where constitutional vacuum continued to exist. On the functions of the Constituent Assembly the Proclamation was silent but the Provisional Order not only defined the Constituent Assembly but clearly envisaged that the Constituent Assembly also would frame the Constitution of the country. In other words, it meant that those MNAs and MPAs who were elected in the elections held in December 1970, January 1971 and March 1971 were to comprise the Constituent Assembly[27]. The Proclamation provided a provision for oath only to the President and the oath to the Vice-President was to be administered by a duly constituted potentiary. In the Proclamation a kind of a Presidential administration was envisaged to meet a special situation with no concept of cabinet as such, but the Provisional Order created a 'Cabinet of Ministers.'

However, in order to accomplish this process of changing the Presidential form into a Parliamentary one Mujib as the President first appointed Justice A.S.M. Sayem as the Chief Justice under the Provisional Constitution Order and administered oath to him in the morning of January 12, 1972 and then he himself resigned. On his resignation under section 8 of the Provisional order the cabinet appointed Justice Abu Sayeed Chowdhury as the President who in turn was administered oath by the newly appointed Chief Justice[28]. Thereafter Sayed Nazrul Islam, Tajuddin Ahmed and others of the government resigned and the President commissioned Mujib under section 7 of the Provisional Order as the Prime Minister. Mujib then formed his new cabinet consisting of eleven Ministers[29]. The President then under section 10 administered oath of office to the Prime Minister and other Ministers.

Scanned with CamScanner

Why did Mujib rush to change the governmental system? The first reason was a historical one. The people of Bangladesh were used to have elective local bodies for a long time and it was introduced in Bengal before any other part of British India and the elective legislatures functioned in Bengal for over 50 years[30]. Secondly, from the inception of the Awami League in 1949 the party was committed to introduce a parliamentary system in the country. Through all the major political movements from the 21-point programme in 1954 to the 6 and 11 point programmes in 1968-69 and finally the election in 1970-71 firm pledge was made to the people by Sheikh Mujib that he believed in a democratic system and parliamentary form of government would be established in the country[31]. By promulgating the Provisional Constitution Order, Mujib felt proud of himself in the sense that he could keep his commitment to the people. The long cherished dream of people for having a parliamentary system was now fulfilled. Thirdly Tajuddin having led the war-government became too much identified with India and for strategic and international reasons it was better to change the old government and bring a new one.

In reality however there was another side of the Provisional Constitution Order. Although the Order was made "to establish a Parliamentary democracy" the actual effect was that the power remained concentrated in one hand. It was a change in form and it enabled Mujib to redesignate his position as the Prime Minister in place of the President. The legislative powers continued to remain vested in the executive. Although it visualised a parliamentary system there was no parliament in existence; there was a cabinet of Ministers which was not accountable to the people and a Prime Minister could not be removed from his office. The fundamental rights remained suspended and the High Court's jurisdiction to issue any writ, order or directive in the nature of habeas corpus, mandamus, prohibition, quo warranto or certiorari was closed down[32].

Notes

1. Siddiq Salik, *Witness to Surrender*, Karachi: Oxford University Press, p. 211.
2. On delegation from the Acting President, the Prime Minster was exercising all the executive powers. Sayed Nazrul Islam was the Vice President -cum-Acting President and Tajuddin Ahmed was the Prime Minister.

Scanned with CamScanner

3. Abdus Samad, a member of the Pakistan civil service was the Defence Secretary and General M. A. G. Osmani was the C-in-C of the Mukti Bahini.
4. See *Newsweek*, January 3, 1972. "Beharis" were those who migrated primarily from the Indian State of Bihar on the portion of the sub-continent but the term became widely known to identify all non-Bengali speaking immigrants irrespective of their origin.
5. They became popularly known as "16th Division" meaning those who became freedom fighters after 16th of December. A huge number of Peace Committee members and Razakars got into this bandwagon. Peace Committees were formed by Pakistan authorities to assist them them in apprehending the freedom fighters in different localities. The Razakars were the members of the para-military force raised by Pakistan Government in assisting them to combat the freedom fighters.
6. The Bengali civil servants were led by Ruhul Quddus as the Secretary-General of the Bangladesh Government.
7. See detail as to how the Government in exile was formed and their character and behaviour. Author's book, *Bangladesh: Constitutional Quest for Autonomy*, Dhaka: University Press Limited, 1980 pp. 264-277. This book was originally Published by Franz Steiner Verlag, Wiesbaden, West Germany, 1978 under the auspices of South Asia Institute, University of Heidelberg. The book was subsequently published with due permission by the University Press limited, Dhaka.
8. A section of people alleged that the Indian Government advised the Bangladesh leaders to wait till the situation improved. The author who was present in Calcutta took an active part in pressing the leaders to go to Dhaka. The author helped in establishing the External Publicity Division of the Government in exile at Calcutta and was deeply associated with it till the end of the war.
9. See author's observations about the character of the independence war in his book, *Bangladesh: Constitutional Quest for Autonomy*. pp. 272-277.
10. Under the leadership of Serajul Alam Khan and Sheikh Fazlul Huq Moni a special corps of trained boys were raised in India, 'Mujib Bahini' by name, who claimed to represent Mujib and this leadership as opposed to Tajuddin and others.
11. From the very inception the Government-in-exile was divided. Although officially there was only one government, it was not difficult to see that there was no cohesion or coordination between the different leaders in the government. There were in fact 6 parallel governments, one led by Tajuddin,

Scanned with CamScanner

second led by Khondker Moshtaque, third by Qamruzzaman, fourth by Mansur Ali, fifth by the Mukti Bahini and sixth by the Mujib Bahini. No account was ever made public as to how the 82 crores taka allegedly taken away from various East Pakistan banks and deposited with the Government in-exile were spent.

12. The full text of the negotiation between Bhutto and Mujib is not yet known. Mujib however, mentioned in his 10th January speech that Bhutto requested him to maintain some kind link, presumably at least in the form of a confederation with Pakistan. Mujib, however, assured Bhutto that Bangladesh would function as a sovereign state and he would not allow the Indian Army to remain on the soil of Bangladesh for long`.
13. Mujib's associates claimed that he wanted to maintain a neutral position vis-a-vis India till he could receive a full-scale briefing. See his Delhi airport statement of January 10, 1972.
14. I met Mujib the same day at his residence—he looked the same, warm and optimistic as ever.
15. The Proclamation was made back-dated after the government was formed. For more about the government see the author's *Bangladesh; Constitutional Quest for Autonomy*, pp. 264-269.
16. Indian lawyers and bureaucrats assisted in drafting the Proclamation. Amirul Islam an eminent lawyer of Bangladesh and an MNA played an important role. When the proclamation was issued in Calcutta the Government-in-exile was in contact with only about 35 MNAs and MPAs. For the text of the Proclamation, see Appendix A. MNA—Members of National Assembly; MPA—Members of Provincial Assembly.
17. Without naming Sheikh Mujib as the President of Independent Bangladesh it would have been impossible to rally round the people.
18. In order to resolve the internal fight for portfolios, Syed Nazrul Islam, a softer personality was named as the Vice-President in the instrument itself. The author's *Bangladesh: Constitutional Quest for Autonomy*, pp. 265-266.
19. On the declaration of independence on March 26, 1971. See author's *Bangladesh; Constitutional Quest for Autonomy*, pp. 256-257 and 269-270.
20. On this issue and on the controversy arising from it, more will be said in Chapter IV.
21. See author's book, *Bangladesh: Constitutional Quest of Autonomy*, pp. 269-270.

Scanned with CamScanner

22. Edward Dembauld, The Declaration of Independence and what it means to them, Norman, University of Oklahoma Press, 1950.
23. For the text see Appendix 'B'
24. The condition of the Mukti Bahini members and other fighters were miserable. They were receiving only Rs. 1.25 per day per person for their food. etc. This created a deep resentment amongst the freedom fighters.
25. This provisional Constitution was drafted at the Law Consultants, a law firm of which the author is a partner. Justice Abu Sayeed Chowdhury, Dr. Kamal Hossain and Amirul Islam prepared the draft. See for the text of the Order, Appendix 'C'
26. Under the Proclamation Mujib was made the President although he was a member of the Constituent Assembly.
27. The female members were elected indirectly in March, 1971.
28. Here the cabinet under section 8 must have meant the old one created under the Proclamation. Otherwise, Mujib could not have summoned himself as the new Prime Minister. On the other hand, the cabinet was to come into existence only under the Provisional Order.
29. The first cabinet under Sheikh Mujib consisted of Sayed Nazrul Islam, Tajuddin Ahmed, Mansur Ali, Khondker Moshtaque Ahmed, Abdus Samad, A. H. M. Qamruzzaman, Sheikh Abdul Aziz, Yusuf Ali, Zahur Ahmed Chowdhury, Phani Bhushan Majumder and Dr. Kamal Hossain.
30. Dr. Kamal Hossain, *Bangabandhu and Bangladesh, Sheikh Mujib,* London Radical Asia Books January, 1977. p. 18.
31. Almost all political parties of Bangladesh including the rightist parties were committed to a parliamentary system.
32. The High Court of Bangladesh order, 1972 (C.P.O. No 5. of 1972). Article 4. See also 25 DLR 1973, p. 390 Jadu Nath Majumder vs. Hasina Begum.

Scanned with CamScanner